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Associative Political Obligations*

A. John Simmons

I

If we owe to [civil society] any duty, it is not subject to our wills. Duties are not voluntary. . . . The awful Author of our being is the Author of our place in the order of existence. . . . He has in and by that disposition virtually subjected us to act the part which belongs to the place assigned us. . . . Parents may not be consenting to their moral relation; but, consenting or not, they are bound to a long train of burdensome duties towards those with whom they have never made a convention of any sort. Children are not consenting to their relation; but their relation, without their actual consent, binds them to its duties. . . . So, without any stipulation on our own part, are we bound by that relation called our country. . . . The place that determines our duty to our country is a social, civil relation. . . . The place of every man determines his duty.¹

With the possible exception of his reference to the “Author of our being,” Edmund Burke’s words would not seem out of place in the writings of any number of contemporary authors writing on the problem of political obligation. Ronald Dworkin, for instance, claims in *Law’s Empire* that “political obligation . . . is a form of *associative* obligation,” a kind of moral requirement that he also refers to as a “communal obligation” or an “obligation of role.”² Such obligations, Dworkin tells us, are not a matter of choice but are the special responsibilities assigned by local social practice “to membership in some biological or

* For their helpful comments on earlier drafts of this article, I would like to thank Nancy Schaubert, Rüdiger Bittner, Leslie Green, and the referees for and editors of *Ethics*.

1. Edmund Burke, *Appeal from the New to the Old Whigs*, in *Works of Edmund Burke* (Little Brown, 1866), vol. 4, pp. 164–67.

2. Ronald Dworkin, *Law’s Empire* (Cambridge, Mass.: Harvard University Press, 1986), p. 206; my emphasis.

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social group," such as a family or a group of neighbors or colleagues.³ And John Horton, in his recent book *Political Obligation*, claims "that familial obligations share several features with political obligations, and that the family provides a good example of a context in which obligations are experienced as genuine and rather open-ended, and are not the result of voluntary undertaking. . . . A polity is, like the family, a relationship into which we are mostly born."⁴

Burke, writing two centuries earlier (in 1791), captured much of the spirit of the contextualist, antivoluntarist strain of thought that has come (especially during the past decade) to occupy a central place in the literature on political obligation (and on many other topics in moral and political philosophy). The inspiration for this contemporary movement, admittedly, has not been primarily Burkean. It has more often been Aristotelian or Hegelian or Wittgensteinian or pragmatist in nature. But the strange alliance springing from these (and other) sources has been bound together by many of the same contentions advanced by Burke in the passage above. The most important of these (interrelated) contentions seem to be the following:

1. *Antivoluntarism*.—Voluntarists claim that our political obligations can arise only from our voluntary choices to subject ourselves to the political authority of others or to participate in the ongoing cooperative schemes of political life. Voluntarists also typically assert (on the strength of descriptive claims about actual political life) that many of us do in fact have political obligations, born of precisely these kinds of voluntary acts. But antivoluntarists plausibly contend that actual political societies are not voluntary associations nor are they importantly like the voluntary associations we know best. We are for the most part born into political societies and rise into our places as citizens of them without ever freely choosing to participate or to become members.⁵ However attractive the social contract theorist's pic-

3. Ibid., pp. 195–96.

4. John Horton, *Political Obligation* (Atlantic Highlands, N.J.: Humanities, 1992), pp. 146, 150. For other examples of the old and new versions of this position on political obligation, see, e.g., F. H. Bradley: "What [a man] has to do depends on what his place is. . . . We must say that a man's life with its moral duties is in the main filled up by his station in that system of wholes which the state is . . . , by its laws and institutions and still more by its spirit. . . . We may take it as an obvious fact that in my station my particular duties are prescribed to me, and I have them whether I wish to or not" (F. H. Bradley, "My Station and Its Duties," in his *Ethical Studies* [Indianapolis: Bobbs-Merrill, 1951], pp. 110, 112); and Michael Hardimon: "The idea that we have noncontractual familial obligations is one of the most salient beliefs we have. . . . I may also have an analogous obligation to the state. . . . Our roles as family members and citizens are the source of some of the deepest and most important bonds we have" (Michael Hardimon, "Role Obligations," *Journal of Philosophy* 41 [1994]: 342, 344, 353).

5. The classic statement of this view, of course, is Hume's, in his essay "Of the Original Contract." It is interesting that Locke, the archvoluntarist, seems to agree that most people think this; they "take no notice" of the consent that grounds political

ture of political life may be in other, prescriptive regards, antivoluntarists are right to believe that this picture is not even remotely accurate as a descriptive account of contemporary societies. But further, they argue, insofar as membership in political societies clearly carries with it certain duties or obligations, the nonvoluntary character of membership entails that our political obligations also fall on us independently of our voluntary choices. Thus, the consent theorist's insistence that free consent to political authority is a necessary condition for political obligation must be rejected. Nor should this be a troubling conclusion, they claim, given that so many of our duties, both general (owed to all other persons) and special (owed to particular persons, such as family members, friends, or lovers), seem not to be voluntarily assumed.

2. *The authority of shared moral experience.*—Important support for the first thesis (antivoluntarism) derives from the fact that ordinary people do not experience political life as voluntary and from the fact that they do experience many of their duties (including their political duties) as nonvoluntary. Voluntarism does not reflect our shared moral experience. Our claims about, for example, political obligation must be true to moral phenomenology, must be realistic. This thesis is defended in many different forms; but in whatever form it is defended, it appears to have one crucial consequence for the debate about political obligation: it rules out in advance what is commonly referred to as philosophical anarchism. Philosophical anarchists maintain that we (or that most of us) have no political obligations, that all arguments purporting to establish general political obligations fail (perhaps even necessarily fail, as a result of a necessary clash between state authority and the autonomy required for individual obligation). Especially during the 1970s, one popular response to the rejection of voluntarism (as descriptive of actual political life) was precisely to embrace some form of philosophical anarchism.⁶ But when we accept the second thesis (the authority of shared moral experience), the anarchist response to the first thesis (antivoluntarism) seems to be precluded. For,

obligations "and thinking it not done at all, or not necessary, conclude they are naturally subjects as they are men" (John Locke, *Second Treatise of Government*, sec. 117 [Cambridge: Cambridge University Press, 1960], p. 346). The best-known contemporary statement of the antivoluntarist line is in Rawls; see, e.g., John Rawls, *A Theory of Justice* (Cambridge, Mass.: Harvard University Press, 1971), pp. 336–37, and *Political Liberalism* (New York: Columbia University Press, 1993), pp. 136, 222, 226–27.

6. See esp. R. P. Wolff, *In Defense of Anarchism* (New York: Harper & Row, 1970); M. B. E. Smith, "Is There a Prima Facie Obligation to Obey the Law?" *Yale Law Journal* 82 (1973): 950; A. John Simmons, *Moral Principles and Political Obligations* (Princeton, N.J.: Princeton University Press, 1979). Some philosophical anarchists accept voluntarism as a normative thesis about what is necessary for political obligation while rejecting it as descriptively accurate (i.e., rejecting the claim that many actual citizens in actual states have performed the voluntary acts required to obligate them). Others think that political communities are such that no person ever could be obligated to one.

the argument goes, ordinary people clearly do believe that they have political obligations. Philosophical anarchism, viewed in this light, looks odd and unrealistic;⁷ and its efforts to portray ordinary beliefs about political obligation as a kind of false consciousness can never get off the ground.

3. *Particularity*.—Another consequence of accepting the second thesis is that any account of political obligation must satisfy what I have elsewhere called the “particularity requirement.”⁸ Political obligations are felt to be obligations of obedience and support owed to one particular government or community (our own), above all others. Citizens’ obligations are special ties, involving loyalty or commitment to the political community in which they were born or in which they reside. More general moral duties with possible political content, such as duties to promote justice, equality, or utility, cannot explain (or justify, or be) our political obligations, for such duties do not necessarily tie us either to one particular community or to our own community. Promoting such values may require the support of many communities, of no existing communities at all, or of communities other than our own.⁹ By accepting the particularity requirement, then, the associative obligation theorist can exclude another popular response to the first thesis (antivoluntarism). Rawls, for instance, was pushed by the failure of voluntarism (as a descriptive account) to seek our political obligations instead in his (hypothetical contractarian) account of the natural duty of justice.¹⁰ But if general duties cannot specially bind us in the proper way to our own political societies, above all others, then the particularity requirement seems to rule out any natural duty approach of this sort.¹¹ With voluntarism, anarchism, and natural duty ap-

7. Margaret Gilbert, “Group Membership and Political Obligation,” *Monist* 76 (1993): 119–20; Horton, pp. 133–35; George Klosko, *The Principle of Fairness and Political Obligation* (Lanham, Md.: Rowman & Littlefield, 1992), pp. 23–26.

8. Simmons, pp. 31–35. Similar appeals to the need for particularity followed in, e.g., Dworkin, p. 193; Klosko, pp. 4–5; and Gregory Kavka, *Hobbesian Moral and Political Theory* (Princeton, N.J.: Princeton University Press, 1986), pp. 407–15.

9. Simmons, pp. 32–34, 154–55. Our general duties would also require different kinds of support for our own political communities under different circumstances. This general style of argument against natural duty accounts of political obligation is followed in *Law’s Empire* (Dworkin, p. 193).

10. Rawls, *Theory of Justice*, chap. 6.

11. Rawls, of course, attempted to particularize his natural duty account by limiting the scope of the natural duty of justice to the support of those just institutions that apply to us. I have argued (Simmons, chap. 6, pp. 32–34) that this move in fact involves the illicit use of nonduty considerations (i.e., those that make application seem morally significant). For a recent attempt to defend a natural duty account of political obligation, see Jeremy Waldron, “Special Ties and Natural Duties,” *Philosophy and Public Affairs* 22 (1993): 3–30.

proaches all on the sidelines, understanding political obligations as associative or communal begins to seem very attractive.¹²

4. *The analogy with the family.*—This tack may seem even more attractive if we question the orthodox Lockean view that familial obligations and political obligations are dissimilar enough to discredit any attempt to understand the latter in terms of the former. A prominent feature of our shared moral experience consists precisely in the obligations we feel toward those with whom we share the nonvoluntary special relationships around which so many of our social practices revolve—Dworkin mentions as examples of such relationships those with family, friends, neighbors, lovers, fellow union members, and colleagues.¹³ But surely, we might say, our experience of our political obligations is reasonably similar after all to our experience of these familiar nonpolitical, associative obligations. Both arise from social relationships in which we usually just find ourselves (or into which we grow gradually), both involve no datable act of commitment, and both involve requirements to show a special loyalty and concern.¹⁴

Indeed, moved by a slightly different spirit, we might wish to even more closely associate familial with political obligations by specifically contrasting these two to the obligations arising from all the other types of social relationship mentioned by Dworkin. Michael Hardimon, for instance, follows Hegel in drawing a sharp contrast between the sphere of civil society and that of the family and state:

“Civil society,” as I understand the term, refers to the domain of private association distinct from the family and the state. It includes, but is by no means limited to, the marketplace. It also comprises the network of voluntary associations which includes unions, professional associations, private clubs, social movements, and neighborhoods. This sphere is governed by a norm of voluntary association. . . . The idea would be that, whereas actual choice is required for obligation within civil society, it is not required for obligation within the family and the state. Within these spheres, noncontractual role obligations may be morally binding.¹⁵

But even if we agree with Dworkin that states and families do not impose moral requirements on members in a fundamentally different

12. Indeed, the only other strategy that has been at all popular (once voluntarism, anarchism, and natural duty theories are rejected) is trying to devise new, nonvoluntarist versions of moral principles that used to be defended in different forms by voluntarists. The nonvoluntarist contract theories I discuss below are one example of this strategy.

13. Dworkin, pp. 195–96.

14. Horton, pp. 145–51, 157–59, 163; Gilbert, “Group Membership,” pp. 122–25, 127–28.

15. Hardimon, pp. 352, 353.

way than do, say, neighborhoods or friendships, we may still be inclined to allow that familial obligations are importantly like political obligations in both their generation and their content.

5. *The normative power of local practice.*—These observations may motivate an even stronger view of the locality of political obligations—that is, the view that local associative obligations, including political obligations, are internally justified or self-justifying, that local practice can independently generate moral obligations. One might maintain, for instance, that (a) having political obligations is just part of what it means to be a member of a political community, just as having familial obligations is part of what it means to be a family member; (b) criteria of membership are in such cases simply social facts wholly determined by social practice; (c) the specific content (requirements) of our associative obligations is also simply a social fact; and therefore (d) our social practices and the obligations they define require no justification by reference to external moral principles¹⁶—that is, our practices, to impose genuine obligations, need not be voluntarily accepted, consented to, recognized, maximally useful, or in conformity with any principles external to those practices themselves.

Somewhat less dramatically, one might maintain instead simply that local social practices at least determine the specific content of many obligations (i.e., the behavior required), including the content of our political obligations, even though some external general moral principle must require it if we are to be bound to accept or comply with the requirements of local practice (e.g., the principle of utility might direct us to conform our conduct to the specific requirements of local practice).¹⁷ In either case, however, one would be maintaining that political obligations are not only local in the sense of being owed particularly to one's own country (or community, or government) but also local in the sense of possibly varying quite significantly in content with variations in social location.

II

The theses of antivoluntarism, the authority of shared moral experience, particularity, the analogy with the family, and the normative power of local practice jointly define a definite argumentative space within which the theses' proponents must locate their arguments for (justifications of) political obligation. The theses define this space, of

16. Horton, pp. 145–48. For the simpler view of local associative political obligations as essentially self-justifying, see Haskell Fain, "The Idea of the State," *Nous* 6 (1972): 25.

17. See Leslie Green, "Consent and Community," in *Political Obligation*, ed. P. Harris (London: Routledge, 1990), pp. 103–6.

course, in part by just excluding the options of voluntarism, anarchism, and natural duty theories. But the theses jointly require as well that any argument for political obligations characterize these obligations in a special way—namely, as associative obligations or role obligations. We can take an associative obligation to be a special moral requirement, attached to a social role or position (including that of membership in a group), whose content is determined by what local practice specifies as required for those who fill that role or position.¹⁸

The argumentative space referred to above is, however, still a large space, and many different accounts of political obligation can fit within it (unsurprisingly, given the varied roots from which defenses of the theses have grown). I will concentrate here on a set of three related (styles of) argument for political obligation that satisfy the theses' requirements and that present political obligations as associative in character. These are the three arguments that I take to have enjoyed the most contemporary support. While these arguments are not always carefully distinguished by their advocates, clarity requires that we distinguish them here. And clear exposition will show us, I think, why all three styles of argument should be rejected.

The first of the arguments can, I think, be dismissed reasonably quickly. It is presented most transparently in the work of some Wittgensteinian political theorists writing in the 1950s and 1960s. Carole Pateman has dubbed it the "conceptual argument" and Margaret Gilbert the "analytic membership argument,"¹⁹ and versions of it were defended by Margaret MacDonald, Thomas McPherson, and Hanna Pitkin, among others.²⁰ The conceptual argument attempts to dissolve the problem of political obligation by pointing to the connections of meaning between concepts such as government, state, authority, or citizen (member) and the concept of political obligation. It makes little

18. Hardimon defines a "role obligation" as "a moral requirement, which attaches to an institutional role, whose content is fixed by the function of the role, and whose normative force flows from the role" (Hardimon, p. 335). His definition thus shares quite a few features with my definition of associative obligation, differing from it primarily where I emphasize social roles and group membership generally (as opposed to Hardimon's emphasis on purely institutional roles) and where I remain neutral on the source of the relevant normative force (as we will see, only some defenders of associative political obligations regard local social practice as normatively independent). And both definitions are obviously quite similar to Dworkin's characterization of associative obligations, despite Hardimon's claims that "role obligations . . . are not usefully thought of as a species of associative obligation" (*ibid.*, pp. 335–36).

19. Carole Pateman, *The Problem of Political Obligation* (Berkeley: University of California Press, 1985), p. 27; Gilbert, "Group Membership," p. 121.

20. See Margaret MacDonald, "The Language of Political Theory," in *Logic and Language*, ed. A. Flew, 1st ser. (Oxford: Blackwell, 1963), p. 184; Thomas McPherson, *Political Obligation* (London: Routledge & Kegan Paul, 1967), p. 64; Hanna Pitkin, "Obligation and Consent, II," *American Political Science Review* 60 (1966): 39–52, p. 48.

sense, the argument goes, to ask the traditional questions of why (or whether) we should obey the government with authority over us or of why (or whether) a member of a political community has political obligations. To ask such questions is to betray one's failure to understand the concepts at issue. Having political obligations is just part of what it means to be a member of a political community; being owed obligations of obedience and support by its subjects is just part of what it means to be a government with authority over those subjects. The traditional problem of political obligation thus succumbs to a volley of analytic statements.

That such conceptual arguments cannot succeed in their purpose I take to be reasonably obvious.²¹ Even if political obligations for members are entailed by the very concept of membership, it remains meaningful and important to ask what makes a person a member of a political community and thus to ask what grounds the (analytic) obligations of membership (supposing any such exist). Even if governments with authority are, as a matter of meaning, owed political obligations by their subjects, it remains meaningful and important to ask what gives a government its authority, whether any governments with *de jure* authority exist, what makes a person subject to a government, and, consequently, what grounds those political obligations. These remaining questions about the grounds of political obligation simply are, of course, the traditional questions about political obligation, and they must inevitably reemerge from the smoke generated by the conceptual argument. Indeed, this should have been obvious all along. For were the conceptual argument sound, we would not be able even to understand the claims of rebels and anarchists who deny their obligations. It would be as if they were claiming that a triangle need not be supposed to have three sides. But that the claims of rebels and anarchists are at least meaningful (i.e., not self-contradictory) seems plain. At the very least, we can understand them to be saying that they deny their membership in the political society that claims them as citizens.

Needless to say, it will not do to respond that being a member (or being a government with authority) is just a socially or politically assigned fact about a person (or a set of institutions)²² so that no inquiry into the grounds for assertions of membership (or authority) is necessary. For it is precisely the normative import of social and political claims that people are members or that governments have authority

21. For other arguments to this conclusion, see Simmons, pp. 38–43; Pateman, pp. 27–30, 104; Richard Flathman, *Political Obligation* (New York: Atheneum, 1972), pp. 100–106, 111–12; Green, "Consent and Community," pp. 93–95; Horton, pp. 137–45.

22. This seems to be the response in, e.g., Parekh, "A Misconceived Discourse on Political Obligation," *Political Studies* 16 (1993): 242–43, 249.

that are at issue in the traditional debates about political obligation. As a result, it is incumbent on those who wish to extend or develop the conceptual argument to add to it a substantive account of why the local social and political assignments of membership and authority should themselves be taken to be authoritative and, consequently, why the requirements of local social and political practices and institutions should be taken to be binding upon us. This will involve engagement with, rather than the dissolution of, the familiar questions about political obligation; the most interesting efforts to defend the idea of local, associative political obligations all begin by recognizing this fact.²³

III

I turn now to the first of the more plausible strategies for arguing for associative political obligations—what I will call nonvoluntarist contract theory. This approach is the one most closely allied with that of Burke, who, while rejecting voluntarist consent and contract theories, nonetheless advanced a social contract justification for the binding force of local (and institutional) obligations: “Now, though civil society might at first be a voluntary act, (and in many cases it undoubtedly was,) its continuance is under a permanent standing covenant, coexisting with the society; and it attaches upon every individual of that society, without any formal act of his own. This is warranted by the general practice, arising out of the general sense of mankind. . . . Without their choice [men] enter into a virtual obligation as binding as any that is actual.”²⁴

The nature of the social contract or standing covenant that binds each of us to our local duties remains always a bit obscure in Burke. The idea is perhaps explained more helpfully in the work of Michael Walzer, which, despite Walzer’s professions of voluntarism, really amounts in the end (in my view) to another sort of nonvoluntarist contract theory of political obligation.²⁵ But the version of this view

23. See, e.g., Gilbert, “Group Membership,” p. 121; Horton, p. 145.

24. Burke, p. 165.

25. In both *Obligations* and *Just and Unjust Wars*, Walzer maintains that the rights of states and the obligations of citizens rest on consent (Michael Walzer, *Obligations* [New York: Simon & Schuster, 1970], esp. pp. ix–xi, 7–10, and *Just and Unjust Wars* [New York: Basic, 1977], esp. p. 54). But the consent that is relevant turns out in both cases to be given in a kind of informal “contract” that is “hard to describe.” It is given “over time,” rather than in a series of discrete transfers of authority (*Obligations*, p. xi, *Just and Unjust*, p. 54). It is given by “willing membership” (where the willingness is of “minimal moral significance”) and by our sense of ourselves as sharing a “common life” (*Obligations*, pp. 7, 18, ix, *Just and Unjust*, p. 54). Indeed, “‘contract’ is a metaphor for a process of association and mutuality” (*Just and Unjust*, p. 54), and “consent” is given by “silence” and in “the daily round of social activities and the expectations of peaceful conduct” (*Obligations*, pp. 100–101). We can, then, give our consent and make our contract, recognize and participate in a common life, according to Walzer, without

that can most usefully be discussed here (because of its greater clarity) is that defended by Margaret Gilbert in her article "Group Membership and Political Obligation." According to Gilbert, some shared activities are based on what she calls a "joint commitment," something that can range from a sort of very informal or tacit agreement to a loose, rather vague, mutual understanding. It is essential to joint commitments that "the relevant parties mutually express their readiness to be so committed, in conditions of common knowledge," and the primary function of such commitments "is to establish a set of obligations and entitlements between individual persons to establish a special 'tie' or 'bond' between them."²⁶ Perhaps most important, joint commitments needn't involve any datable act of commitment (but can "grow up somehow," "just happen," or result from "a process that is considerably extended in time"), and they needn't be fully voluntary (in the sense that entering into and being obligated by them is not precluded by "coercive circumstances").²⁷

The relevance of these claims to the problem of political obligation appears to be obvious. In most countries, many of the people subject to law and governmental authority speak (and think) of themselves as members of a "plural subject," referring to the country as "our country" and the government as "our government." There is good reason to think, Gilbert claims, that this language expresses their joint commitment to the political community and explains their shared moral experience of felt obligations of obedience and support owed specially to that country (or community, or government). Since joint commitments determine actual (if not, perhaps, moral) obligations, there is good reason to believe that those who feel themselves so obligated do in fact have political obligations. This amounts to an "actual contract theory" of political obligation²⁸ that is nonetheless consistent with anti-voluntarism, with the authority of shared moral experience (and the antianarchist position this allegedly implies), and (obviously) with the particularity and locality of political obligations.

Whatever we may think of Gilbert's general account of joint commitments, there are serious difficulties involved in trying to apply such an account to our political lives in a way that will yield clear political obligations. The actual extent of these difficulties may be obscured by at least three confusions. The first is the confusion of felt obligations

performing any fully voluntary acts or choices of the sort that we would normally describe as consent, promises, or contracts—hence my characterization of Walzer as a nonvoluntarist contract theorist.

26. Gilbert, "Group Membership," pp. 123–24.

27. *Ibid.*, pp. 124–25, 129–30. See also Margaret Gilbert, "Agreements, Coercion, and Obligation," *Ethics* 103 (1993): 679–706, esp. pp. 701–5.

28. Gilbert, "Group Membership," pp. 127–28, 129, "Agreements," pp. 703–5.

with genuine obligations. The mere fact that individuals refer to “our” government and have a vague feeling of indebtedness to “our” country should not, of course, lead us to believe that those individuals in fact have (or even really believe they have) political obligations. Confused, oppressed, or unthinking feelings of obligation are too common a feature of our moral lives to make reasonable such leaps of faith. I will suggest (in Sec. IV) a better way of understanding these phenomena.

A second, related confusion (that may also prompt the illegitimate extension of Gilbert’s reasoning to the political realm) is the confusion of political acquiescence with positive, obligation-generating acts or relationships. To be sure, expressions of a willingness to go along with arrangements often look like commitments or consent or agreement; and they can, in proper circumstances, in fact amount to a kind of consent. But a preparedness to go along, even under conditions of full knowledge, is certainly not the same thing as consent or commitment, nor does it have the same normative consequences. One can choose to go along with an arrangement for a time, perhaps even for quite a long time, without thereby undertaking any obligation to continue to go along in the future. My acquiescing to some pushy participant’s efforts to organize our game (by, say, assigning team members and specifying rules) in no way commits me to accepting his further plans or pronouncements about the game or about anything else. Neither does the average political subject’s expressed preparedness to continue as a participant in the political game entail any commitment (or any obligation) to future obedience to and support of the political community’s government.

It is common to argue against such a conclusion by introducing a third confusion, the confusion of reasonable expectations with entitlements. Once again, it may appear that when individuals express a willingness to go along with arrangements, they thereby induce the reliance of others on their continued acquiescence, creating reasonable expectations of future conformity which those others are entitled to see fulfilled. If four friends meet to play bridge every Friday evening for a year, it may be reasonable for each of them to take the behavior of the others to constitute a very loose, informal agreement, obligating each to continue to show up for the game on Friday evenings. There is, as Gilbert puts it, a “tacit understanding” between the friends.²⁹ But in a case of this sort, of course, there is a more or less continuous, direct, personal contact between the friends, during which there have presumably been many opportunities to make genuine expressions of their joint commitment to the game (or to make clear just how their continued participation in the game should be understood). In short,

29. Gilbert, “Group Membership,” p. 124.

the tacit agreement undoubtedly refers to something rather more substantial than a mere reasonable expectation of future performance.

By contrast, simple reasonable expectation in no way implies obligation or entitlement in cases where the parties are less directly and personally involved with one another. When a year of Kant's daily walks through town creates in the Königsberg housewives the reasonable expectation that they will be able to set their clocks by his passing, Kant acquires no obligation to continue his walks, an obligation that would, say, override his preference to remain at home one day to read Rousseau. Indeed, even if Kant had maliciously intended to create these expectations by his actions, his actions still would not create for him new obligations. Only a much more direct, explicit, and personal agreement or understanding between Kant and the housewives could accomplish this—that is, could transform reasonable expectations into legitimate entitlements. Kant may well be personally committed to taking his daily walks (out of his desire for good health), but he has not committed himself to doing so in any transaction with others. Perhaps it is the play on the word 'commitment' that seduces here.

The conclusive point against the nonvoluntarist contract theory of political obligation, however, is this: surely when we think of the relationships that typically hold between fellow subjects in some large-scale political community (as opposed to, say, a town or a neighborhood), we see that these relationships much more closely resemble the indirect, impersonal relationship between Kant and the housewives (whose expectations, however reasonable, they were not entitled to demand that Kant fulfill), than they do the direct and personal relationship (laden with tacit commitments) between the bridge-playing friends.³⁰ If this is true, as I think it plainly is, then it seems that Gilbert's efforts to extend an analysis appropriate only to (certain kinds of) direct, personal, shared activities into an analysis that would cover the very indirect, impersonal, shared activities of residents in the same political community must fail in a reasonably straightforward fashion. For while residents of typical political communities may, like Kant, be committed to various things—to obeying the law, to staying out of legal trouble, to doing what they think is independently right, and so on—they have not normally committed themselves to one another—they have not tacitly agreed together on anything—in a way that would ground for them political obligations. Gilbert (with other nonvoluntarist contract theorists) needs the latter, stronger notion of

30. Notice that Gilbert's examples of joint commitments all involve very personal shared activities, such as taking a walk together or regularly going for coffee after the meetings of a scholarly society (Gilbert, "Group Membership," pp. 122–24). Perhaps, then, Locke was right after all to insist that political obligations require a rather different sort of analysis than do the more personal obligations of family members to one another.

citizens' commitments to explain citizens' obligations. But the facts of actual political life permit her, if anything, only the weaker notion of citizens' commitments, which explains obligations not at all. And, in any event, of course, insisting on the stronger notion of commitment she needs would in effect involve reasserting the voluntarist picture of political society whose rejection partly motivated the project in the first place.

Ronald Dworkin, although no contract theorist, has advanced arguments that might seem to blunt the force of my objections here. For Dworkin claims that direct, personal relationships between persons are not necessary for grounding associative or communal obligations. He sees that the primary objection to trying to analyze political obligations in the same terms in which one analyzes the nonvoluntary communal obligations between family members, friends, and associates is that communal obligations seem "to depend upon emotional bonds that presuppose that each member of the group has personal acquaintance of all others, which of course cannot be true in large political communities."³¹ Dworkin's response to this objection is that the conditions on communal obligations are not psychological, but interpretive, conditions. While the obligations between group members do in a sense require that they have personal concern for (and thus a sort of personal interaction with) one another, "the concern they require is an interpretive property of the group's practices of asserting and acknowledging responsibilities . . . , not a psychological property of some fixed number of the actual members." So political obligations can turn out after all to be associative or communal, despite the emotional distance between most members of political groups, if the best interpretation of that political group's practices involves appropriate equal concern for all members.³²

I confess that I find a bit bizarre the suggestion that the best interpretation of a family's "practices" or a friendship's "practices" might involve reciprocal and equal concern, even if the family members or "friends" lacked any attitudes or feelings of concern toward one another. And Dworkin himself admits that "a group will rarely meet or long sustain [the interpretive conditions] unless its members

31. Dworkin, p. 196. Instead of saying with Dworkin that these obligations "depend upon emotional bonds," I would say that direct, personal involvement permits the actions of individuals to be imbued with a clear significance, thus permitting degrees of commitment to be clearly expressed in action.

32. *Ibid.*, p. 201. Dworkin's argument is obviously rather more involved than this brief summary suggests. Among other things, Dworkin argues that a "true community," one that involves nonvoluntary communal obligations for its members, must in its practices display not only equal concern for all members but also a sense that the responsibilities of members are reciprocal, personal, and special to that group (*ibid.*, pp. 198–201).

by and large *actually feel* some emotional bond with one another.”³³ This certainly has the ring of truth, but it seems a fatal admission. For while Dworkin may still be able to claim that political obligations (in some hypothetical large political community) could be associative or communal, he has in effect admitted that this is very unlikely ever to be the case in actual political communities, since members of such communities seldom “actually feel some emotional bond” with all (or even most) of their fellow members. It is simply not true, either in our own political community or in any others with which we are familiar, that most citizens feel with respect to all of their fellows a deep and abiding concern. In the interest of realism, we must acknowledge that the divisions between religions, ethnic groups, races, political parties, castes, economic classes, and so on run too deep for this claim to be convincingly denied. Where one might find the kind of closeness and concern necessary for Dworkin’s account of associative obligations, of course, will only be in groups far smaller than the large-scale political communities with which Dworkin claims to be concerned.

The best interpretation of our political practices, then, will not involve the concern and the reciprocity (etc.) on which the attribution of associative political obligations is alleged by Dworkin to rest. Dworkin, of course, believes that because “our own political culture” is best interpreted as a “community of principle” (i.e., one in which people “accept that they are governed by common principles, not just rules hammered out in political compromise”), it satisfies the interpretive conditions of concern and reciprocity.³⁴ But even if this interpretation of our own (or of some other) political culture were acceptable, which I deny, Dworkin’s strong appeals to independent principles of justice and equal concern would come perilously close to rendering superfluous the very local, associative (communal) obligations that were supposed to lie at the heart of his account of political obligation.³⁵

33. Ibid., p. 201; my emphasis.

34. Ibid., pp. 216, 211. For a helpful and much more detailed discussion of these (and other) aspects of Dworkin’s position, see Leslie Green, “Associative Obligations and the State,” in *Law and Community*, ed. A. Hutchinson and L. Green (Toronto: Carswell, 1989), pp. 93–118.

35. Insofar as local associative obligations are only “genuine,” in Dworkin’s view, when the relevant group is both a true community (i.e., when its practices are best understood as involving reciprocity, special and personal responsibilities, equal concern for all members, etc.) and a just community (i.e., it has a nondefective conception of equal concern and is just to those outside the community [Dworkin, pp. 198–205]), it is not clear just how much moral work is actually being done by the requirements of local practice—as opposed to the principles of justice and equal concern that are used to judge the bindingness of local obligations. Dworkin, of course, hopes that the appeal to local obligations will particularize the application of his general moral principles so that those principles can be understood to bind us specially to our own countries (or associations). But what he actually seems to motivate instead is questions about why

IV

There is a third, and much more common, general strategy for arguing that political obligations are local, associative obligations, and I will refer to it here simply (and a bit misleadingly)³⁶ as the “communitarian theory.” Under that very broad heading I intend to capture accounts that stress one or both of the following two theses:

1. Some (or all) of our obligations are justified in virtue of the fact that denying these obligations would amount to denying our identities as (at least partly) socially constituted beings. What makes me who I am, what gives me my values and ends, is (at least in part) my occupation of certain local social roles, but occupying these roles conceptually involves having the local, associative obligations attached to them. More specifically for our purposes here, the fact that my identity is partly constituted by my role as a member of some political community means that my identity includes being under political obligations. I cannot meaningfully ask why (or whether) the I-who-am-in-part-constituted-by-certain-obligations has those obligations. Alasdair MacIntyre, for example, has argued that “to be a man is to fill a set of roles each of which has its own point and purpose: member of a family, citizen, soldier, philosopher, servant of God” and that “the rational justification of my political duties, obligations, and loyalties is that, were I to divest myself of them by ignoring or flouting them, I should be divesting myself of a part of myself, I should be losing a crucial part of my identity.”³⁷ And John Horton claims: “Both the

our own local associations should be regarded as morally central, why they should be taken to be entitled to our special (or even exclusive) support in the face of other, foreign associations that may be better (more just) or more in need of support—given that our own local associative obligations are so easily overridden by the general, external requirements of justice and equal concern. There are also, I think, serious questions about the extent to which our own community as a matter of fact satisfies the model of principle rather than, say, the rulebook or compromise model—what Rawls calls a “modus vivendi.” And it seems important to note that Dworkin’s identification of true communities (which involve mutual and equal concern) with communities of principle (which involve only the acceptance of common principles) is both questionable and deeply prejudicial to his case.

36. “Misleadingly” because, first, the conceptual argument and the nonvoluntarist contract theory I have already discussed might also not unreasonably be called communitarian and, second, because the term ‘communitarian’ has come in contemporary literature to stand for any of the enormous variety of positions that oppose themselves in fundamental spirit to those positions described (equally vaguely) as liberal. I will discuss here only a subgroup, although a large subgroup, of the positions on political obligation that might be called communitarian.

37. Alasdair MacIntyre, *After Virtue* (Notre Dame, Ind.: Notre Dame University Press, 1981), p. 56, “Philosophy and Politics,” in *Philosophy and Human Enterprise*, ed. J. L. Capps, United States Military Academy Class of 1951 Lecture Series (1982–83), p. 158.

family and the political community figure prominently in our sense of who we are. . . . These kinds of institutional involvement generate obligations.”³⁸

2. Typically accompanying this first, identity thesis is the further, related claim that local social practices (and our roles or places in them) independently determine (some or all) moral requirements. Where the identity thesis stresses the personal incoherence of denying obligations that are conceptually connected to one’s true self, this second, normative independence thesis stresses instead the normative force—that is, the power to independently generate obligations—of the local social and institutional rules and practices under the influence of which those true selves developed. The idea of independent generation of obligations is intended to rule out the need for these local practices to be justified by their utility, by their fairness, by our consent to them, or by appeal to any other “external moral principles.”³⁹ This normative independence of local practice is typically argued for in conjunction either with maintaining that local practice is one of a plurality of spheres or sources of moral requirements—as in Hegel’s famous distinction between the local obligations of *Sittlichkeit* and the universal obligations of *Moralität*—or else by maintaining that local practice is the only possible source of moral requirements. Most theorists whose sympathies are broadly Aristotelian, Hegelian, or Wittgensteinian either state or assume the truth of some version of this second, normative independence thesis.

Despite the obvious connections between the two theses, I want to respond first to the identity thesis, considered by itself. It is curious, I think, that defenders of the identity thesis take the personal incoherence or unintelligibility allegedly involved in denying certain obligations to constitute a justification for ascribing those obligations as moral requirements. No one, I assume, would claim that all personal unintelligibility of this sort amounts to a justification of ascription of moral obligation. A person who believed himself to be Napoleon could not intelligibly deny his obligation to, say, lead the French army, but

38. Horton, pp. 150, 157. See also, e.g., John Charvet, “Political Obligation: Individualism and Communitarianism,” in *On Political Obligation*, ed. P. Harris (London: Routledge, 1990), pp. 65–88, esp. pp. 79–85. One would expect other prominent communitarians, such as Michael Sandel and Charles Taylor, to endorse this position. For the classic statement of the position, see Bradley: “We have found ourselves when we have found our station and its duties, our function as an organ in the social organism. . . . If we suppose the world of relations, in which he was born and bred, never to have been, then we suppose the very essence of him not to be; if we take that away, we have taken him away. . . . The state . . . gives him the life that he does live and ought to live” (Bradley, “My Station,” pp. 101, 104, 110).

39. Horton, p. 147. As we have seen, Hardimon’s account of role obligations characterizes them as moral requirements “whose normative force flows from the role” (Hardimon, p. 334).

this would not show that this person in fact had a moral obligation to lead the French army. Perhaps, we might say, that is only because the person is not really Napoleon. But the same conclusion seems appropriate in the case of someone who really is an agent in the gestapo, someone who can't intelligibly deny the obligations attached by local practice to that position. Surely that personal unintelligibility cannot establish a moral obligation to torture suspects, to send innocents to the death camps, and so on, even if these obligations are (as perhaps they were) conceptually connected to gestapo membership. Perhaps, we might say, that is only because the local practice is in this case morally vile. But if only those local practices that satisfy the demands of external moral principles can realize the argumentative goal here (i.e., generate genuine moral obligations), this strongly suggests that the personal unintelligibility of denying local obligations is not, at least by itself, any basis for ascribing moral obligations. Indeed, it seems plausible to contend that only in conjunction with the second, normative independence thesis does the identity thesis have any real force. Only if our identities are partly constituted by our roles in local practices that do independently generate moral obligations can the unintelligibility of denying our role responsibilities give us any reason to ascribe moral obligations. But if the practices in question independently generate moral obligations for those occupying roles within them, the additional appeal to personal unintelligibility then seems perfectly superfluous and misleading. The personal unintelligibility involved in denying local obligations is a simple consequence of the fact that local practice has assigned an independently generated moral obligation to the occupiers of some role. The personal unintelligibility of denying the obligations is not the reason why persons in fact have the assigned obligations (i.e., it is not the ground of the obligation). That reason is provided by whatever is taken to justify the normative independence thesis.

Now we might, of course, read the first thesis as less about people's socially constituted identities—about the social roles they in fact occupy according to the role-identifying rules of local practice—and more about identification—about the social roles that people identify with, about what they (in reflective moments) take to be their real identities. While local social practice may assign me the political role of U.S. citizen, I only count as a U.S. citizen for moral purposes, with conceptually related political obligations, if I identify with that role. And this identification is what is indicated by our speaking of "our" country or "our" government and by our having certain attitudes characteristic of members or by our participating in the group's political life and steadily following its rules—whatever we may say when the obligations of membership become burdensome.⁴⁰

40. Gilbert, "Group Membership," p. 127; Horton, pp. 152–54, 159.

But why would we think that this kind of identification with a social or political role is either a necessary or a sufficient condition for possessing a moral obligation to abide by the rules of local practice? In the first place, of course, it again seems to matter crucially what kind of practice we are discussing and how well it fares under critical assessment by external moral principles. Oppressed people are frequently brought by long periods of humiliation and indoctrination to identify with their subservient roles and to acknowledge as their own the degrading, locally assigned obligations of second-class members. But this can surely constitute no justification for ascribing to them moral obligations to abase themselves and to selflessly serve their oppressors. And even where immoral practices are not at issue, people can mistakenly identify with certain social roles (and feel obligated by the locally assigned requirements for those roles). I could, on the basis of confusions, lies, or bad information, falsely believe myself to be of Croatian descent or to be the father of a particular child or falsely believe some particular person to be a neighbor. We should not be likely to conclude from such mistaken identification, however, that I have certain associative moral obligations for as long as I mistakenly identify with a role in this way but cease to have those moral obligations at the moment the truth is revealed, at the moment I am stripped of this part of my identity and of my associated sense of obligation.

In the case of membership in political communities, I think, our argument could be similar. Absent any compelling argument for general political obligations (of the sort to which traditional theorists aspired), and absent any compelling argument for the independent binding power of local rules requiring obedience and support (of the sort to which proponents of the normative independence thesis aspire), it seems plausible to dismiss as a kind of false consciousness our feelings of obligation toward our countries of birth or residence. Of course we identify ourselves with "our" countries, "our" governments, and "our" fellow citizens. We have typically been taught from birth to do so, have typically spent our lives in a particular political culture, have been identified with a particular community by those outside our own (for purposes of praise or blame, say), and have associated with and become used to our own ways. That I might feel shame or pride at the acts of my countrymen (or that I might vote in elections and obey the law) is hardly surprising under these conditions. But none of this identification (along with its accompanying feelings of obligation)—none of these ways of speaking and acting—seems, considered by itself, in any way inconsistent with denying that we are morally bound by political obligations to our countries of residence.

Identification with a political community or with the role of member within it is not sufficient for possessing political obligations. Neither is it necessary for this, as can be seen in the simple case of an

individual who freely consents to political obligations (out of simple self-interest, say), while continuing to feel no attachments to or identification with the political community to which he (successfully) binds himself. The fact that he does not feel like a member of a group or think like one no more cancels his voluntarily assumed obligations than does the desire of a promise maker to subsequently renege on his promise.⁴¹ One might in desperation, of course, try to cast identification as a sort of consent or free acceptance of obligation and so try to make identification seem after all at least sufficient for political obligation. But this move from identification as self-definition to identification as personal commitment would appear to amount to reasserting the voluntarism that the identity thesis was originally advanced to replace.

V

If I am right in this, it leaves the defense of associative political obligations resting entirely on what I've called the normative independence thesis. While I cannot here deal decisively with that thesis, understood as a general thesis in moral philosophy, I will try to note some reasons for thinking that it too fails to show that political obligations are best thought of as associative or communal. Some of these reasons are also reasons to be skeptical about the general thesis itself; others are reasons only for believing that the thesis cannot properly support the contention that there are communal or associative political obligations.

We are all familiar with moral arguments in favor of compliance with (some) local practices and institutions that nonetheless deny the normative independence ascribed to such practices by the second thesis. Utilitarians have produced arguments for compliance with useful or expedient local practices; contractarians (such as Rawls) have defended compliance with (or support for, or promotion of) just local practices and institutions; and consent theorists have always allowed that through voluntary acceptance or agreement we may take on (sign on for) the roles and obligations defined by local practice, thereby

41. Hardimon considers a similar case: "Role identification and voluntary acceptance are distinct. . . . Imagine a person with strong anarchist leanings who has successfully completed his medical training. Such a person might voluntarily accept the cluster of duties associated with the role of doctor and yet refuse to identify with this role" (Hardimon, p. 359). So, while this is never clearly stated, identification with a role is apparently not, for Hardimon, necessary for possessing the associated role obligations. And it seems that it cannot be sufficient for this either, since (1) he claims that only those roles that are "reflectively acceptable" generate moral obligations, and (2) we can clearly identify with roles that fail this test of reflective acceptability (*ibid.*, pp. 348–51). But it is then unclear why Hardimon insists that "the idea of *role identification*" is an "absolutely vital factor" allegedly ignored by the (and for that reason, defective) voluntarist theories of institutional obligation (*ibid.*, p. 357).

acquiring genuine moral obligations to fulfill these local associative obligations (at least where local practice conforms to certain moral standards). The normative work in these arguments is done by independent principles of utility, justice, and consent. And we have seen that even some accounts of political obligation that stress the associative or communal character of that obligation do not in fact allow for the normative independence of local practice—such as Gilbert’s account (where the binding force of role obligations derives from the contract that establishes joint commitment to some activity) or Dworkin’s (where there is reliance on a general natural duty to comply with certain sorts of local practices).⁴²

The pressure to deny the normative independence of local practice derives primarily from one obvious fact and from one broad theoretical disposition. The fact is this: local practices and institutions can be unjust, oppressive, pointless, woefully inefficient, and in other ways normatively defective. We have all seen more than we care to of all of these defects. It seems natural in the face of such examples to maintain that either certification of a practice by some independently justifying moral principle or acceptance of the practice by those subject to it is required for the associative obligations imposed by the practice to be genuine moral obligations. The theoretical disposition is the belief that universality (or at least a generality far broader than the local) is an essential property of moral judgments, including those moral principles that entail ascriptions of local obligation.

The pressure to defend the normative independence of (at least certain sorts of) local practices and institutions likewise derives primarily from one obvious fact and from one broad theoretical disposition. The fact is this: we often seem to ascribe role obligations to persons “without reference to some further moral principle or theory. . . . It is often sufficient to point out that a man is this boy’s father to attribute certain obligations on the part of the man towards the boy. It is both unnecessary and misleading to seek some further moral justification for the obligations.”⁴³ The theoretical disposition is the belief that universalism in moral theory is a failed tradition—that morality, to be intelligible, must be understood in a more restricted, culturally relativized, or pragmatic (etc.) fashion.

The controversy over the two broad theoretical dispositions is too substantial and complex to be usefully addressed here. But something helpful can, I think, be said about the “obvious facts” appealed to on the two sides of the debate, for at least one of the obvious facts seems considerably less obvious on reflection. Take the (strongest) case of

42. Dworkin, p. 198.

43. Horton, p. 156.

parental obligations. While it may be true that we think mere parenthood sufficient to ascribe certain rights and obligations to parents without seeking some further justification for this ascription, the rights and obligations we feel comfortable in ascribing are not obviously any or all of the obligations assigned by local practices to parents. We do not automatically accept all aspects of the various institutions or practices of family life. Instead, we reject locally assigned parental rights or obligations where these seem cruel or discriminatory or oppressive. We may, for instance, reject established norms of family life that involve paternal priority, abandonment or sale of children, genital mutilation, arranged marriages, and so on.

Nor are the parental rights and obligations we unqualifiedly accept obviously accepted as self-justifying local rights and obligations. We may confidently ascribe to parents obligations of care, tuition, and support precisely because we believe that all parents everywhere, in all times, have owed this to their children. These natural parental obligations simply (and not coincidentally) have the same content as some of the associative obligations assigned to parents by some local practices. And those who feel no need to argue for or justify such ascriptions of parental obligation, those who find such arguments “unnecessary and misleading,” may believe (or vaguely feel) that some statements about parental obligations are simply self-evidently true—not that (some or all) local practices are normatively independent.

The fact that we ascribe certain role obligations without feeling the need for further justification, then, does little to demonstrate, or even to support, the contention that most of us believe local practices and institutions to be normatively independent (let alone the further contention that they are normatively independent, that shared moral experience is authoritative on this matter). But neither does any of the argument thus far establish that local practices are not normatively independent. That conclusion is supposed to be supported by the other obvious fact that we do not take normatively defective local practices or institutions to be capable of imposing genuine obligations on those occupying roles within them. It might seem, however, that one can acknowledge that the injustice or brutality of a practice limits its power to impose moral obligations on its participants without thereby conceding that the normative independence thesis is false. The following two claims, for instance, may seem crucially relevant here:

1. Even where the injustice of a practice or institution limits its power to impose moral obligations on participants, it may not altogether undermine this power. Unjust institutions, depending on the degree and kind of injustice and on the extent to which the injustice is embodied in particular institutional rules, may succeed in imposing moral obligations in some of the instances where they assign institu-

tional obligations but not in other instances.⁴⁴ Even under the Third Reich, one could argue, German citizens still had a moral obligation to comply with some of the legal requirements assigned by local practice to their roles as citizens (such as the requirements not to steal or murder, not to drive recklessly, or even not to park illegally), but they had no moral obligation to comply with other institutional requirements (such as those requiring the reporting of disloyal talk or of the location of Jews in hiding).

2. Even if it is conceded that assessment by external moral principles (e.g., principles of justice) can limit and in some cases completely undermine a local practice's power to impose genuine obligations, this does not show that the associative obligations that pass this external scrutiny are themselves justified by external principles. Just practices or institutions may still be self-justifying or normatively independent. "It is one thing to show that a particular institution does not violate other fundamental moral principles or commitments, but quite another to have to show that the institution is *justified* by these other moral principles."⁴⁵

Now, with respect to (1), it may be true that many people believe that they have a moral obligation to obey all laws where doing so does not directly involve them in the performance of wrongful or unjust acts. This belief only seems consistent with upholding the normative independence thesis, however, if they also believe something like (2)—that is, if they also believe that the ability of external moral principles to limit or condition the obligation-generating power of local practices does not show that local associative obligations that are morally binding are themselves justified by external moral principles. So (2) seems the more important of the two claims.

It does seem clear that, as (2) asserts, the mere fact that an obligation-generating practice is externally limited (in its power to generate obligations) does not show that the obligations it succeeds in generating are justified by those external limiting principles. A promise, for example, cannot obligate me to commit murder. This does not show, however, that the principle forbidding murder is what justifies binding promissory obligations;⁴⁶ that principle quite clearly has nothing to do with the justification of everyday promissory obligations.

But it is important to note two points about such examples. First, the fact that local practices are limited by, rather than merely conflicting with, external moral principles shows at least that the normative force of local practice is of a lower order than that of the external

44. Dworkin, pp. 203–5.

45. Horton, p. 156.

46. *Ibid.*

principles of justice, respect for persons, nonmaleficence, and the like that limit it. This suggests that local associative obligations, conceived of as independently generated by local practice, are at best a reasonably weak sort of moral obligation—in the face of which it seems appropriate to ask why our moral attention should ever be focused locally rather than on the more weighty general moral concerns that require action far beyond (and sometimes in competition with) what is required by our local role obligations. Second, however, the use of examples such as the practice of promising or laws imposing order on social activities really is not the best test for the normative independence thesis. For these practices or institutions are naturally imagined to have compelling external justifications (in terms of their utility, the requirements of fair play, or our tacit or hypothetical consent to them, etc.). So while we can allow that the obvious fact of normatively defective local practices does not demonstrate the falsity of the normative independence thesis, we should not allow this failure to look as if it counts as evidence in favor of the thesis.

The best commonsense test case for the normative independence thesis would be that of a practice that was perfectly morally neutral under assessment by external moral principles. Hopelessly evil local practices impose no genuine obligations because they are condemned by external principles. Beneficial, just, freely accepted practices do impose genuine obligations but apparently only because external principles in those cases require compliance. The normative independence thesis, however, asserts that local practices and institutions can impose genuine moral obligations simply by virtue of being in force, simply by virtue of the social fact that people occupy (by choice or not) roles or stations, with associated role obligations, within these schemes. So what we need is to imagine a practice whose sole salient moral property is that it is in force, which thereby takes external principles out of the picture altogether, and then assess this practice's normative power.

This turns out to be (perhaps surprisingly) quite difficult. For the mere fact that a practice is in force entails the presence of practice-related expectations whose frustration produces disutility, involves sacrifices by those who comply with its rules that seem to call in fairness for sacrifices by others under the rules, and so on. So external moral principles seem automatically to be brought back into the picture. But despite this difficulty, there does seem to be at least one claim about morally neutral practices that can plausibly be made. To the extent that a practice seems morally pointless (from the perspective of external moral principles)—to the extent that it is not beneficial or not freely chosen by its participants to advance their projects, say—to that extent it seems very hard to imagine anyone insisting that the associative obligations it assigns have any genuine moral weight. Even mildly beneficial, harmlessly silly practices seem unable to impose any

genuine obligations on nonconsenters assigned roles within them. Nor would the fact that such a practice had a firm hold on or a long standing within a social group look like any better reason for supposing it to independently generate moral obligations.

If my claims here seem wildly hypothetical, it is only because it is so hard to imagine a social practice or institution being established in the first place or long surviving if it were utterly neutral from the external moral viewpoint. The practices with which we are familiar all seem to have either an immoral purpose (e.g., the domination of some by others) or a morally positive aim (e.g., the coordination of otherwise harmful private action, the conferral of widely desired public goods, or the creation of opportunities for advancing less widely shared ends). Even nontyrannical, but nonetheless condemnable, practices (such as dueling) could be thought of as having moral properties of both sorts. But the fact that it is so hard to imagine utterly neutral practices that do not seem at the same time just silly is itself, I think, a strike against the normative independence thesis. Where local practices and institutions are imagined stripped of their external moral justifications, possessing only their social instantiation as a salient property, it is difficult to imagine their normative power as sufficient to overcome even the most trivial and mundane presumptions in favor of allowing instead individual liberty and choice. Mere social instantiation, it seems, is unlikely to confer any normative power on a practice.

My suggestion, then, is that it is not so much the familiar actual phenomenon of morally vile local practices that should make us skeptical about the normative independence thesis as it is the hypothetical case of the morally neutral local practice. I acknowledge that the defender of the thesis will have a hard time answering a criticism such as mine in terms that I would find satisfying. For asking questions about why a morally neutral local practice should be thought capable of generating moral obligations seems to amount to asking for a general external justification of the practice that we know in advance cannot (*ex hypothesi*) be forthcoming. The response, "This is just what the game involves; local practice simply has social and linguistic, hence moral, authority," will not satisfy anyone who wants to argue that how one gets into the game, or the generalizable virtues of the game, are what confer real moral authority. Being born into an (externally) morally neutral structure of institutional roles and responsibilities, in my view, would no more provide one with a moral reason for compliance than being born handicapped would provide one with a moral reason for conforming one's behavior to the local social expectations about activities appropriate to the handicapped.

There are, then, some good reasons to be skeptical about the normative independence thesis—and, consequently, some good reasons to reject claims about the associative character of political obliga-

tion. In fact, however, I think the case against associative political obligations is stronger than the case against the normative independence thesis. So, in closing, I will (very briefly) suggest some reasons for believing that even if we are mistaken in rejecting the normative independence thesis, we should still reject claims that political obligations are associative or communal. Suppose, then, that the normative independence thesis is true, that (at least some) local social practices impose (some or all of our) genuine moral obligations, independent of justification by any moral principles external to the practices themselves. Even if this is true, the following arguments show that political obligations, as least, are not associative:

1. If our theory of political obligation is to be true to our shared moral experience, it will have to account for the fact that most people feel that the content of our communal, associative obligations is vague and indeterminate at best. While we are confident that we must show certain kinds of special concern for our family members, friends, neighbors, or colleagues, we are generally not very clear about the exact requirements of even our most central obligations to these communal associates.⁴⁷ By contrast, most people have quite a clear sense of at least the bulk of the content of their political obligations. They feel they must, in at least virtually all cases (i.e., at least where the law is not morally abhorrent), obey the laws of their country, the most central of which, at least, have quite a specific and widely known content. The contrast between our shared experience of vague, indeterminate associative obligations and our shared experience of reasonably precise, determinate political obligations makes it hard to see how an analysis of the latter in terms of the former is at all likely to succeed—at least if the authority of shared moral experience is not questioned. If it is questioned, of course, then the primary intuitive support for associative obligations (i.e., the felt obligations of family members, friends, etc.) is undercut, and competitor theories allegedly eliminated by this authority—such as philosophical anarchism—can once again enter the debate.⁴⁸

2. If our account of political obligation is to be true to our shared moral experience (as the argument for associative political obligations requires), we will have to acknowledge that our experience of, for example, family life is much more communal in nature than is our

47. Gilbert, "Group Membership," p. 125; Horton, pp. 150–51, 163.

48. If we respond by claiming that the content of political obligation is also vague and indeterminate (Horton, p. 163), we simply threaten the basis of the entire argument. Ordinary people, if they believe they have political obligations at all (an assertion that merits testing, although I have not questioned it here), plainly adhere to the idea of reasonably strict obedience to enacted law, not to some vague idea of obligatory special concern for their state.

experience of political life. Political life may not resemble a club or other voluntary association, as communitarians observe. But we cannot honestly say that it much resembles a tribe or a family or a pair of friends or lovers either—or even a group of neighbors who live close together or a group of employees who work closely together. Our sense of community—of shared interests, values, expectations, life prospects, and the like—is, at least for most of us, so much less involved in our political lives than in these other aspects of our lives that it is only a matter of ancient habit that we refer to modern states as political communities at all.

As a result, some communitarians (such as MacIntyre) plausibly charge that modern individuals live in nothing even vaguely like a unified community but live instead either as social atoms or as members of numerous overlapping, substate groups. To which group or institution, after all, do we feel most bound: to our country, to our society, to our locality, to our neighborhood, to our religion, to our race, or to our company? Even, then, if these communitarians are skeptical about traditional accounts of political obligation, they also provide noncommunitarians with good reasons to believe that political obligations in modern states are not correctly thought of as communal or associative.⁴⁹

My conclusion, then, is that political obligation is not a form of associative obligation. The conceptual argument, the nonvoluntarist contract theory, and the communitarian theory have all failed to establish the associative character of political obligation. Further, even if some account of associative obligation succeeded in defending the normative independence of some local practices and institutions, this account could not show our political obligations to belong to the class of associative obligations. While we might then be able to imagine a political community in which political obligations would be associative,

49. MacIntyre writes that in a society such as ours “the nature of political obligation becomes systematically unclear. Patriotism is or was a virtue founded on attachment primarily to a political and moral community and only secondarily to the government of that community. . . . When however the relationship of government to the moral community is put in question both by the changed nature of government and the lack of moral consensus in society, it becomes difficult any longer to have any clear, simple and teachable conception of patriotism” (*After Virtue*, p. 236). Horton replies that in a pluralistic society lacking moral consensus there can still “be some agreement about the desirability of many laws, or even where there is such disagreement . . . there [can] be some mutual accommodation which . . . is generally acceptable” (Horton, p. 168). But this reply seems to amount only to an argument for the possibility of a political *modus vivendi* in modern states, not for what Dworkin calls a “community of principle.” The former condition, however, is consistent only with political obligations so utterly different in character from the associative or role obligations of families, friends, or neighbors that the point of stressing the analogy seems altogether lost.

we would also have to admit that our own large-scale political communities bear little resemblance to the close-knit group imagination produced. If we have political obligations at all, then, they are not associative obligations. And if we do not have them but should come to have them through changes in our behavior, our political practices, and our institutions, then unless these changes were genuinely revolutionary, our political obligations would still not be associative obligations. An adequate account of political obligation will have to begin instead, I think, by questioning some or all of the five theses (such as antivoluntarism and the analogy with the family) that associative obligation theorists seem too eagerly to accept.⁵⁰

50. My preferred account of political obligation maintains that few citizens of modern states have political obligations, that associative, communal, role, or institutional obligations require external justification to be morally binding, and that associative obligation theorists go wrong from the start by accepting unqualified versions of the theses of antivoluntarism and the authority of shared moral experience and by accepting any version of the theses of the analogy with the family and the normative power of local practice. Sustaining these claims, of course, would require a far more systematic account of the subject than it has been my business to attempt here.